

12.10.2023:

Orders on I.A.No.1

1. The Learned counsel for decree holder has filed the instant application u/Sec.39 of CPC seeking for transfer of Decree to the Court of Senior Civil Judge and JMFC Court, Bhadravathi, Shimogga District, to execute the decree as Judgment Debtors are residing within the jurisdiction of aforesaid court.

2. Learned counsel for Decree Holder submitted that, judgment debtors resides and personally works for gain within the jurisdiction of above Court and therefore he prays for transfer of Decree.

3. Sec.39 of CPC enables the court which passed the decree send the decree to another court of competent jurisdiction for execution. Sec.39(a) of CPC enables the court which passed the decree may of its own motion send it for execution to any subordinate court of competent jurisdiction. The cause title of the Execution Petition and decree passed in O.S.No.5157/2014 reveals that Jdr is residing at Hollhonnur, Shimogga District. Further it is submittd that J.dr has not yet deposited the decreetal amount. Hence, following

:: ORDER ::

The application filed by the Dhr U/Sec. 39 (a) of CPC is hereby allowed and the decree is hereby transfered to Senior Civil Judge and JMFC Court, Bhadravathi, Shimogga District, for execution of award passed in O.S.No.5157/2014.

Office to send the records of the case to above court as per law. Issue DTC.

XIV ACC& SJ Bengaluru.